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Crack Down on Noisy Vehicles

ACT will introduce noise cameras to catch excessively loud vehicles, establish a clear and enforceable roadside noise standard, and increase penalties for offenders.

A small number of drivers can make life miserable for an entire neighbourhood.

Excessively loud exhausts, engine revving and aggressive acceleration can wake families in the middle of the night, disturb babies and young children, interrupt sleep before work or school, and leave residents anxious waiting for the next vehicle to tear past.

For people living on streets repeatedly targeted by noisy drivers, the problem can become part of everyday life. Windows stay shut, children are woken, pets are startled, and a handful of drivers can create a nuisance for hundreds of people.

The problem is particularly difficult to enforce because it is transient. Unlike a noisy property or business, a loud vehicle may be outside someone's home for only a few seconds. By the time a resident makes a complaint or Police arrive, the vehicle is usually long gone.

Excessive vehicle noise is already illegal, but effective enforcement can depend on a Police officer happening to be in the right place at the right time. Technology can solve that problem.

01 Introduce noise cameras

ACT will establish a fleet of relocatable noise cameras that can be deployed in communities suffering persistent problems with excessively noisy vehicles.

Modern noise cameras combine microphones, video and number plate recognition. They measure the sound generated by passing vehicles, identify which vehicle produced it, and record the evidence needed for enforcement.

Instead of requiring a Police officer to personally witness an offence, excessively noisy vehicles can be detected as they pass and infringement fees issued in the same way as speed cameras.

The cameras will be targeted at identified hotspots. Because they are relocatable, NZTA will be able to move them between streets and communities as problems emerge rather than allowing drivers to simply learn the location of a permanent camera and avoid it.

This is established technology. New York City operates an ongoing noise-camera enforcement programme targeting excessively loud vehicles.

Taiwan has also used noise cameras for enforcement since 2021, and Kensington and Chelsea in London introduced noise cameras after complaints about drivers revving engines and using local streets as racetracks.

New Zealand has experience with the technology too. NZTA installed a noise camera on Tākitimu Drive in Tauranga in 2013 to detect noisy truck engine braking. The system combined noise detection with number plate recording. The New Zealand trial was done with much older technology and was not used to issue infringement fees.

02 Establish an objective and enforceable noise standard

Excessively noisy vehicles are already illegal in New Zealand. The problem is that the current law relies on a largely subjective test, which is difficult to enforce automatically.

ACT will introduce a clear roadside noise limit that approved noise cameras can measure. ACT's starting point will be 86 decibels on roads with speed limits of 50 km/h or less, and 90 decibels on roads above 50 km/h and up to 70 km/h. These are the limits used in Taiwan. France has legislated a similar urban limit of 85 decibels.

The final New Zealand standard will be confirmed following consultation and technical testing, with rules covering matters such as background noise, weather, calibration and measurement tolerances.

ACT will also make the legal changes required so evidence from approved noise cameras can be used to issue infringement notices.

The objective standard, legislative changes and first cameras will be in place by the end of 2027.

03 Increase penalties for excessive vehicle noise

ACT will increase the infringement fee for operating a vehicle that creates excessive noise from $50 to $300, with the maximum court fine increasing from $1,000 to $3,000.

Parliament has already legislated those penalties for the separate offence of creating excessive noise within or on a vehicle, which can include noise from car stereos and sirens. From 9 January 2027, that offence will carry a $300 infringement fee and a maximum court fine of $3,000.

No equivalent increase was made to the offence covering excessive noise produced by the operation of the vehicle itself, including excessive engine and exhaust noise.

ACT will align the penalties so excessive vehicle noise is treated consistently regardless of whether it comes from equipment inside the vehicle or from the vehicle's engine or exhaust.

Vehicles detected exceeding the prescribed roadside standard by an approved noise camera will be liable for the $300 infringement fee.

04 Fund and roll out the cameras

ACT will provide $2 million for an initial rollout of 20 relocatable noise cameras, beginning in the Tāmaki electorate and other identified vehicle-noise hotspots.

The funding provides an average of $100,000 per camera, including procurement, installation, calibration, associated technology and initial operating costs.

That is a conservative allowance based on experience in New Zealand and overseas. Taiwan purchased 21 mobile noise camera enforcement systems in 2023 for the equivalent of around NZ$49,000 per system. New York City has purchased noise cameras for approximately NZ$61,000 per camera.

NZTA's original Tauranga installation cost approximately $100,000, but that figure included not only the camera, but development and procurement of processing software, installation and the initial programme of data review.

Providing up to $100,000 per camera therefore gives sufficient room for New Zealand-specific installation, calibration, system integration and initial operating costs rather than budgeting only for the hardware.

The rollout will begin in Tāmaki and other communities with persistent vehicle-noise problems. Because the cameras are relocatable, they can subsequently be shifted between hotspots as complaints and enforcement priorities change.

People should not have to rely on a noisy driver being unlucky enough to pass a Police officer before the law can be enforced. Noise cameras will allow the offence to be detected when it happens, provide objective evidence, and make existing restrictions on excessive vehicle noise practically enforceable.

Give communities some peace

People should be able to sleep, relax and enjoy their homes without having their street turned into someone else's racetrack.

Traditional enforcement struggles because the offending vehicle is often long gone before Police can respond. Noise cameras solve that practical problem by capturing the evidence at the moment the offence occurs.

ACT will introduce relocatable noise cameras, establish a clear roadside noise standard, and increase the infringement fee for excessive vehicle noise to $300.

If you make an unreasonable amount of noise, you should not have to be unlucky enough to drive past a Police officer to get caught.

Technical note: legal changes required

Rule 7.4(1) of the Land Transport (Road User) Rule 2004 already prohibits a driver from operating a vehicle that creates excessive noise. The rule requires consideration of the circumstances, including how the vehicle is being driven, its condition, the time and place, and the likelihood of annoyance. That works for officer-led enforcement but is poorly suited to an automated camera system that needs a measurable threshold.

ACT will create a specific objective standard for noise-camera enforcement. Regulations will prescribe the applicable decibel limits and the method of measurement, including camera positioning, vehicle speed, background-noise correction, weather conditions, calibration and measurement uncertainty.

ACT will also:

- amend section 145 of the Land Transport Act 1998 so data from approved vehicle-surveillance equipment can be relied on as evidence of both the sound level recorded and the attribution of that sound to the identified vehicle;
- use the regulation-making powers in section 167 to establish the objective noise-camera infringement offence and declare it a moving vehicle offence;
- use the existing registered-person liability and automated-processing framework in sections 133 and 139AAA; and
- approve qualifying acoustic-camera systems as approved vehicle surveillance equipment, using the same statutory mechanism already used for speed and red-light cameras.

An infringement will only be issued where the approved system can establish both that the prescribed noise limit was exceeded and that the sound was attributable to the identified vehicle.

Data collected by noise cameras will only be able to be used for enforcement purposes and will be subject to strict retention and deletion requirements. A person issued with an infringement notice will be entitled, on request, to a copy of the relevant audio and video evidence.

Consistent with existing automated camera enforcement, infringement notices issued by noise cameras will not carry demerit points. Section 88 of the Land Transport Act already excludes offences detected by approved vehicle-surveillance equipment from the demerit-points regime.